

In the Supreme Court of the United States

KRISTI NOEM, SECRETARY OF HOMELAND SECURITY, ET AL., APPLICANTS

v.

PEDRO VASQUEZ PERDOMO, ET AL.

**APPLICATION TO STAY THE ORDER ISSUED
BY THE UNITED STATES DISTRICT COURT
FOR THE CENTRAL DISTRICT OF CALIFORNIA
AND REQUEST FOR AN IMMEDIATE ADMINISTRATIVE STAY**

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PARTIES TO THE PROCEEDING

Applicants (defendants-appellants below) are Kristi Noem, Secretary of Homeland Security; Todd M. Lyons, Acting Director, U.S. Immigration and Customs Enforcement; Rodney S. Scott, Commissioner, U.S. Customs and Border Patrol; Michael W. Banks, Chief, U.S. Border Patrol; Kash Patel, Director, Federal Bureau of Investigation; Pam Bondi, Attorney General; U.S. Immigration and Customs Enforcement; Ernesto Santacruz Jr., Acting Field Office Director for Los Angeles, U.S. Immigration and Customs Enforcement; Eddy Wang, Special Agent in Charge for Los Angeles, Homeland Security Investigations, U.S. Immigration and Customs Enforcement; Gregory K. Bovino, Chief Patrol Agent for El Centro Sector, U.S. Border Patrol; Jeffrey D. Stalnaker, Acting Chief Patrol Agent, San Diego Sector, U.S. Border Patrol; Akil Davis, Assistant Director in Charge, Los Angeles Office, Federal Bureau of Investigation; and Bilal A. Essayli, U.S. Attorney for the Central District of California.

Respondents (plaintiffs-appellees below) are Pedro Vasquez Perdomo; Carlos Alexander Osorto; Isaac Villegas Molina; Jorge Hernandez Viramontes; Jason Brian Gavidia; Los Angeles Worker Center Network; United Farm Workers of America; Coalition for Humane Immigrant Rights; and Immigrant Defenders Law Center.

RELATED PROCEEDINGS

United States District Court (C.D. Cal.):

Perdomo v. Noem, No. 25-cv-5605 (July 11, 2025) (granting temporary restraining order)

United States Court of Appeals (9th Cir.):

Perdomo v. Noem, No. 25-4312 (Aug. 1, 2025) (denying motion for stay pending appeal)

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Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Kristi Noem, Secretary of Homeland Security, et al.—respectfully files this application to stay the July 11, 2025 order issued by the United States District Court for the Central District of California (App., *infra*, 62a-113a). In addition, the Solicitor General respectfully requests an administrative stay of the district court’s order.

This case involves a district-court injunction that threatens to upend immigration officials’ ability to enforce the immigration laws in the Central District of California by hanging the prospect of contempt over every investigative stop of suspected illegal aliens. Not only is the Central District the Nation’s most populous district overall; at best estimate, it harbors some 2 million illegal aliens out of its total population of nearly 20 million people, making it by far the largest destination for illegal aliens. Given the Administration’s commitment to enforcing the Nation’s immigration laws—under which illegal aliens are subject to investigative stops and detention

to facilitate removal—it should be no surprise that the Los Angeles area is a top enforcement priority. When immigration-enforcement stops involve briefly detaining a suspected illegal alien, they must comply with the Fourth Amendment’s reasonable-suspicion requirement—a low bar that “is considerably less than * * * a preponderance.” *United States v. Sokolow*, 490 U.S. 1, 7 (1989). Like most Fourth Amendment tests, that context-specific inquiry requires considering the totality of the circumstances. And here, those circumstances necessarily include that illegal presence is widespread in the Central District, where 1 in every 10 people is an illegal alien; that many locations unlawfully employ illegal aliens and are known to hire them on a day-to-day basis; that certain types of jobs—like day labor, landscaping, and construction—are most attractive to illegal aliens because they often do not require paperwork; that the vast majority of illegal aliens in the District come from Mexico or Central America; and that many only speak Spanish.

Needless to say, no one thinks that speaking Spanish or working in construction *always* creates reasonable suspicion. Nor does anyone suggest those are the *only* factors federal agents ever consider. But in many situations, such factors—alone or in combination—can heighten the likelihood that someone is unlawfully present in the United States, above and beyond the 1-in-10 baseline odds in the District. U.S. Immigration and Customs Enforcement (ICE) agents are entitled to rely on these factors when ramping up enforcement of immigration laws in the District.

The district court’s injunction now significantly interferes with federal enforcement efforts across a region that is larger and more populous than many countries and that has become a major epicenter of the immigration crisis. Respondents—a handful of individuals who allege they were previously stopped without reasonable suspicion, and various organizations purporting to represent some indefinite number

of unidentified aliens—alleged that federal agents have an unlawful pattern or practice of considering some combination of four factors (apparent race or ethnicity; speaking in Spanish or accented English; presence at a location where illegal aliens are known to gather; and working or appearing to work in a particular type of job) as sufficient for reasonable suspicion. The court then indefinitely and categorically enjoined federal agents from ever treating those four factors, alone or collectively, as sufficient to constitute reasonable suspicion of illegal presence as to any of the Central District’s 20 million residents. The district court and the Ninth Circuit both refused to stay that order. Now, ICE agents, under threat of contempt, cannot detain anyone in the District solely based on those factors—not even after encountering someone who speaks only Spanish and works as a day laborer at a worksite that has been cited 30 times for hiring illegal aliens as day laborers.

That sweeping injunction defies a host of this Court’s precedents. Start with Article III standing precedents. Even assuming *arguendo* that individual respondents or members of the organizational respondents were stopped previously without reasonable suspicion (a point the government contests), this Court has long held that allegations of *past* unlawful interactions with law enforcement do not show a sufficient risk of *future* unlawful interactions. *City of Los Angeles v. Lyons*, 461 U.S. 95 (1983). Just because respondents were previously detained does not mean that they, out of the Central District’s 20 million people, will be detained again, let alone detained based *solely* on the four factors. The lower courts instead found standing based on a supposed pattern or practice of unlawful stops (which, to be clear, does not exist) and speculation about future harm, but neither supplies a sufficient, imminent, concrete risk that *respondents* will be unlawfully stopped in the future. And this Court has rejected the court of appeals’ theory of standing based on mere “assessment of

statistical probabilities,” *Summers v. Earth Island Inst.*, 555 U.S. 488, 498 (2009).

Meanwhile, on the merits, the injunction defies blackletter Fourth Amendment law, imposing a straitjacket on law-enforcement efforts that is inimical to the context- and case-specific totality-of-the-circumstances inquiry that this Court’s precedents demand. The lower courts wrongly cabined the reasonable-suspicion inquiry by holding that no combination of the four factors can ever constitute reasonable suspicion, no matter how those factors present in a given stop, because the lower courts viewed those factors as too generalized and broadly applicable across the population. That framework narrows reasonable suspicion through the sort of “overlay of a categorical scheme on the general reasonableness analysis” that this Court has consistently rejected. *United States v. Banks*, 540 U.S. 31, 42 (2003); see *United States v. Arvizu*, 534 U.S. 266 (2002). The lower courts’ approach also ignores the relevant factual context: in a District where about 10 percent of all residents are illegal aliens, reasonable suspicion to stop suspected illegal aliens will necessarily encompass a reasonably broad profile. The result is a self-contradictory injunction: the lower courts found standing based on the supposedly concrete likelihood that respondents—out of millions—might be stopped on impermissible grounds, yet refused to find reasonable suspicion because these grounds describe far too many people.

On top of all that, by imposing a universal, District-wide injunction applicable to millions of people, the district court flouted this Court’s recent decision in *Trump v. CASA, Inc.*, 145 S. Ct. 2540 (2025), prohibiting such universal injunctions. Rather than limiting relief to the named respondents, the court enjoined the government as to *any* detentive stops of *anyone* among the 20 million inhabitants of the Central District of California—whether those stops affect respondents or not. The lower courts deemed a narrower injunction unworkable, but under their logic, universal injunc-

tions would be the norm whenever law-enforcement officers are alleged to have employed any practice violating the Fourth Amendment. *CASA* is not so easily evaded. Any one of these fatal flaws would warrant this Court's review.

This injunction inflicts manifest irreparable harm on the government. The injunction wrongly brands countless lawful stops as unconstitutional, thereby hampering a basic law-enforcement tool, while turning every single stop in the District into a potential contempt trap. No agent can confidently enforce the law and engage in routine stops when the district court may later refuse to credit that the stop reflected additional, permissible factors and instead treat virtually any stop as contemptuous misconduct. And that threat—unlike respondents' fears of future stops—is hardly speculative. The lower courts have already made clear that some obviously permissible additional factors—like law-enforcement officers' past experience—are not additional factors at all, but fold into the four factors those courts considered insufficient. And the district court has already ordered the government to show cause why it should not also be required to develop new policies, compel agents to undergo training, and even share records of every stop with plaintiffs' counsel going forward.

When lower courts have tried to stymie other areas of immigration enforcement with unlawful, blunderbuss injunctions, this Court has not hesitated to stay those orders. *E.g.*, *Noem v. Doe*, 145 S. Ct. 1524 (2025); *Noem v. National TPS Alliance*, No. 24A1059, 2025 WL 1427560 (May 19, 2025); *Trump v. Sierra Club*, 140 S. Ct. 1 (2019). This injunction warrants the same treatment. Absent this Court's intervention, a single district judge will micromanage immigration enforcement in the Central District by injunction, at the expense of Executive Branch enforcement priorities and the separation of powers. This Court should end this attempted judicial usurpation of immigration-enforcement functions and issue a stay forthwith.

STATEMENT

A. Background

Based on the latest census and Office of Homeland Security Statistics data, the government estimates that at least 15 million illegal aliens—and likely several million more—are unlawfully present in the United States.¹ Millions of them crossed into the country illegally within the last four years. From 2021 to 2024, federal agents encountered some 9 million illegal aliens along the border; many others illegally entered after evading detection entirely. See Office of Homeland Sec. Statistics, Dep’t of Homeland Sec., *Immigration Enforcement and Legal Processes Monthly Tables* (Jan. 16, 2025), <https://ohss.dhs.gov/topics/immigration/immigration-enforcement/monthly-tables>. By current estimates, some 12.8 million aliens entered the country illegally during the previous administration.

The Immigration and Nationality Act (INA), ch. 477, 66 Stat. 163 (8 U.S.C. 1101 *et seq.*), consistent with statutes enacted throughout the Nation’s history, authorizes immigration officers to search for and apprehend illegal aliens to facilitate their removal from the United States. See *Abel v. United States*, 362 U.S. 217, 233 (1960) (collecting statutes “authoriz[ing] the arrest of deportable aliens by order of an executive official”); see also, *e.g.*, Act of June 25, 1798, ch. 58, § 2, 1 Stat. 571 (authorizing the President to “cause to be arrested and sent out of the United States such of

¹ See also Steven A. Camarota & Karen Zeigler, Ctr. for Immigration Studies, *Foreign-Born Number and Share of U.S. Population at All-Time Highs in January 2025* (Mar. 12, 2025) (estimate of 15.4 million as of January 2025), <https://cis.org/Report/ForeignBorn-Number-and-Share-US-Population-AllTime-Highs-January-2025>; Bryan Baker & Robert Warren, Office of Homeland Sec. Statistics, Dep’t of Homeland Sec., *Estimates of the Unauthorized Immigrant Population Residing in the United States: January 2018-January 2022*, at 14 (Apr. 2024) (estimate of 11 million as of January 2022), https://ohss.dhs.gov/sites/default/files/2024-06/2024_0418_ohss_estimates-of-the-unauthorized-immigrant-population-residing-in-the-united-states-january-2018%25E2%2580%2593january-2022.pdf.

those aliens as shall have been ordered to depart therefrom * * * in all cases where, in the opinion of the President, the public safety requires a speedy removal”). The INA authorizes agents to “interrogate any alien or person believed to be an alien as to his right to be or to remain in the United States” and arrest any alien if they have “reason to believe that the alien * * * is in the United States in violation of [immigration] law or regulation and is likely to escape before a warrant can be obtained for his arrest.” 8 U.S.C. 1357(a)(1) and (2); see *Nielsen v. Preap*, 586 U.S. 392, 397 n.2 (2019) (noting statutes vesting immigration-enforcement powers in the Secretary of Homeland Security); see also 8 C.F.R. 287.5(a) and (c) (authorizing immigration officers to interrogate and arrest aliens).

Immigration officers can exercise those powers “without [a] warrant.” 8 U.S.C. 1357(a). And they can detain individuals for questioning consistent with the Fourth Amendment based on “reasonable suspicion” of illegal presence in the United States, as this Court held in *United States v. Brignoni-Ponce*, 422 U.S. 873, 884 (1975); see *Terry v. Ohio*, 392 U.S. 1 (1968). Reasonable suspicion requires “aware[ness] of specific articulable facts, together with rational inferences from those facts, that reasonably warrant suspicion” that the person is an “alien[] who may be illegally in the country.” *Brignoni-Ponce*, 422 U.S. at 884. The reasonable-suspicion inquiry “turn[s] on the totality of the particular circumstances.” *Id.* at 885 n.10.

Such investigative stops have been a critical component of day-to-day federal immigration-enforcement efforts for decades, across administrations. Federal regulations implementing the INA expressly contemplate such stops and codify the reasonable-suspicion requirement. 8 C.F.R. 287.8(b)(2) (“If the immigration officer has a reasonable suspicion, based on specific articulable facts, that the person being questioned is, or is attempting to be, engaged in an offense against the United States or

is an alien illegally in the United States, the immigration officer may briefly detain the person for questioning.”). ICE guidance for immigration officers likewise describes investigative stops supported by reasonable suspicion as one of the “principal levels of encounters” that agents initiate in enforcing the immigration laws. ICE, Homeland Sec. Investigations, *Search and Seizure Handbook* 16 (Sept. 14, 2012), https://www.ice.gov/doclib/foia/policy/hsi12-04_SearchSeizure_09.14.2012.pdf. Immigration officers receive training on what reasonable suspicion entails and are taught to form reasonable suspicion based on the totality of the circumstances rather than any particular facts or considerations in isolation. See D. Ct. Doc. 94-1, at 2-3 (July 14, 2025) (Quinones Decl.); 8 C.F.R. 287.1(g) (describing officers’ “[b]asic immigration law enforcement training”); *Search and Seizure Handbook* 11.

B. Proceedings Below

1. The Los Angeles area is one of the most important regions for immigration enforcement in the country. According to estimates from Department of Homeland Security data, nearly 4 million illegal aliens are in California, and nearly 2 million are in the Central District of California. Los Angeles County alone had an estimated 951,000 illegal aliens as of 2019—by far the most of any county in the United States. About 75 percent of those illegal aliens hail from Mexico, El Salvador, and Guatemala. Migration Policy Inst., *Profile of the Unauthorized Population: Los Angeles County, CA*, <https://www.migrationpolicy.org/data/unauthorized-immigrant-population/county/6037>. Illegal aliens form a significant proportion of California’s workforce and are especially highly concentrated in certain sectors, such as agriculture, construction, food services, and transportation. See, e.g., Bay Area Council Econ. Inst., *The Economic Impact of Mass Deportation in California* 24 (2025), <https://www.bayareaeconomy.org/files/pdf/EconomicImpactOfMassDeportation-June2025.pdf>.

ICE’s Enforcement and Removal Operations (ERO) field office for Los Angeles, whose jurisdiction is coextensive with the Central District of California, comprises “over 290 law enforcement officers in six offices who are responsible for enforcing federal immigration laws in seven California counties with a combined population of over 20 million people.” Quinones Decl. 2. Based on current estimates, illegal aliens comprise about 10 percent of the entire Central District population. Thus, while the previous administration carried out some 26,000 immigration arrests in the Central District, those efforts did little to alter the broader dynamics of illegal aliens entering the country and heading for the Central District, especially given its proximity to the border with Mexico.

Complicating federal efforts further, in December 2024, the Los Angeles City Council enacted a “sanctuary city” ordinance restricting Los Angeles law enforcement and other personnel from cooperating with federal immigration enforcement or participating in such enforcement. L.A. Admin. Code § 19.190 *et seq.* (Ord. No. 188441). For example, the law limits local officers’ ability to “[i]nquire into or collect information about an individual’s Citizenship or Immigration Status”; “[i]nvestigate, cite, arrest, hold, transfer, or detain any person for the purpose of Immigration Enforcement”; or “[p]articipate in Immigration Enforcement in any operation, joint operation, or joint task force involving any Immigration Agent.” § 19.191(a), (b), and (f).

2. In early June, ICE and U.S. Customs and Border Protection (CBP) commenced efforts to intensify immigration enforcement in Los Angeles. See D. Ct. Doc. 94-2, at 3 (July 14, 2025) (Parra Decl.). Large crowds of protesters responded by “thr[owing] ‘concrete chunks, bottles of liquid, and other objects’ at [federal] officers” and launching “‘mortar-style fireworks with multiple explosions’ at them”; protesters also “heavily vandalized” a federal building. See, *e.g.*, *Newsom v. Trump*, 141 F.4th

1032, 1041 (9th Cir. 2025) (per curiam). The President deployed the National Guard to protect federal officers performing their duties. See *id.* at 1041-1042.

Despite these challenging conditions, from June 1 to mid-July, ERO “processed approximately 2,805 immigration arrests and numerous criminal arrests in the Los Angeles area.” Quinones Decl. 4. The Mayor of Los Angeles responded by describing ICE’s enforcement activities as a “reign of terror.” Cheyanne M. Daniels, *Mayor Bass calls for end to ICE ‘reign of terror’ in Los Angeles*, Politico (July 20, 2025), <https://www.politico.com/news/2025/07/20/karen-bass-ice-deployed-los-angeles-00464913>. She directed all city departments to conduct trainings on compliance with the sanctuary-city law and “to report any federal immigration enforcement activity on City properties or facilities.” L.A. Exec. Directive No. 12 (July 11, 2025).

This case began on June 20, when three illegal aliens who were arrested in the Los Angeles area filed a habeas corpus action in the United States District Court for the Central District of California seeking their release from immigration detention. D. Ct. Doc. 1. These three individual respondents work as day laborers; they were arrested in Pasadena on June 18 in connection with “a targeted enforcement action at a particular location” (a doughnut shop) “where past surveillance and intelligence had confirmed that the target or individuals associated with him were observed to have recruited illegal aliens to work on landscaping jobs.” Quinones Decl. 3; see Gov’t C.A. Stay Mot. 4; App., *infra*, 11a-12a. All three have since been released from immigration detention on bond. App., *infra*, 13a-14a.

On July 2, respondents filed an amended class-action complaint adding two U.S.-citizen individual plaintiffs and four organizational plaintiffs, plus several federal officials as defendants. D. Ct. Doc. 16. Respondents also filed an ex parte application for a temporary restraining order on July 3. D. Ct. Doc. 45. Respondents’

filings vastly expanded the scope of the suit to challenge the government’s immigration-enforcement operations across the Los Angeles area. See D. Ct. Doc. 16, at 4-6. As relevant here, respondents alleged that federal immigration officers “have adopted a policy and practice of conducting immigration operations in violation of their obligation to stop individuals in public only if there is reasonable suspicion.” *Id.* at 13; see *id.* at 58. Respondents in particular objected that ICE agents were targeting certain types of businesses, like car washes, which “past experiences have demonstrated” are likely to employ illegal aliens. D. Ct. Doc. 71-2, at 3 (July 8, 2025); see D. Ct. Doc. 16, at 6, 13-15. Respondents also complained that agents “have conducted indiscriminate immigration operations, flooding street corners, bus stops, parking lots, agricultural sites, day laborer corners, and other places.” D. Ct. Doc. 16, at 4. The district court gave the government two business days to respond to the TRO application and held a hearing on July 10. See D. Ct. Dkt. 42 (July 3, 2025) (scheduling order).

3. The next day, July 11, the district court granted respondents’ requested TRO and enjoined federal agents from conducting any detentive stops anywhere within the District without reasonable suspicion. App., *infra*, 62a-113a. The court specified that the prohibition means agents cannot “rely solely” on apparent race or ethnicity, use of Spanish or accented English, presence at a particular location, or type of work, either “alone or in combination,” as grounds for reasonable suspicion. *Id.* at 111a. The court acknowledged that there was no evidence of any official policy authorizing stops solely on those bases, *id.* at 106a n.33, but inferred from anecdotal evidence that immigration officers were engaged in a practice of stops based solely on those four factors, *id.* at 100a-102a.

As to standing, the court reasoned that respondents “have standing for this putative class action” based entirely on respondent Gavidia’s allegations that federal

agents had detained and questioned him based on his ethnicity. App., *infra*, 95a-96a. On the merits, the court concluded that respondents were likely to succeed on their claim that the four factors respondents had identified could not suffice to establish reasonable suspicion for a stop. See *id.* at 98a-106a. The court added that insofar as agents relied on other factors, such as a suspect's flight from federal officers, the government "do[e]s not show that they support reasonable suspicion." *Id.* at 102a n.30. As to the scope of relief, the court held that respondents were irreparably harmed by the prospect of future detentive stops, and concluded that "to provide complete relief to the named" respondents, the court "must enjoin the conduct of all law enforcement engaged in immigration enforcement throughout" the entire Central District of California. *Id.* at 97a.

The district court accordingly enjoined the government "from conducting detentive stops in this District unless the agent or officer has reasonable suspicion that the person to be stopped is within the United States in violation of U.S. immigration law." App., *infra*, 111a. The order further provided that applicants, "except as permitted by law," "may not rely solely on" the following four factors, "alone or in combination, to form reasonable suspicion for a detentive stop":

- "Apparent race or ethnicity";
- "Speaking Spanish or speaking English with an accent";
- "Presence at a particular location (e.g. bus stop, car wash, tow yard, day laborer pick up site, agricultural site, etc.)"; and
- "The type of work one does."

Ibid.

The district court denied applicants' motion for a stay of the order pending appeal. D. Ct. Doc. 108 (July 17, 2025). It scheduled a hearing on whether to issue

a preliminary injunction for September 24, 2025, *id.* at 8, meaning the court’s order will remain in effect for the foreseeable future.

4. The court of appeals largely declined to stay the district court’s injunction pending appeal; the court only stayed one provision of the injunction authorizing reliance on the four factors “as permitted by law,” which the court considered vague. App., *infra*, 38a; see *id.* at 1a-61a. The court acknowledged the lack of “evidence of an ‘official policy’ of making stops based only on the four factors and without reasonable suspicion,” but shared the district court’s view that officers “were routinely doing so” by citing, for instance, public statements by a CBP official generally referring to potential further enforcement operations in Los Angeles. *Id.* at 20a; see *id.* at 25a, 96a n.26.²

As to standing, the court of appeals held that all respondents could seek injunctive relief based on a “realistic threat” that the individual respondents and members of the associational respondents “will be stopped without reasonable suspicion” by immigration agents in the future. App., *infra*, 25a (brackets and citation omitted); see *id.* at 22a-33a.

On the merits, the court concluded that the injunction “prohibit[s] sole reliance on the four factors” identified by the district court but does “not prohibit reliance on those factors in combination with unlisted factors.” App., *infra*, 40a-41a. The court did, however, find the “except as permitted by law” clause to be vague, and granted a stay as to that clause alone. *Id.* at 37a-39a, 61a.

The court then concluded that prohibiting the government from engaging in

² The court of appeals also asserted that applicants “did not dispute that these detentive stops have been based solely on the four enumerated factors,” App., *infra*, 21a, but that is incorrect—as the district court stated, “Defendants contest the idea that they relied solely on these factors.” *Id.* at 101a.

detentive stops based solely on the four enumerated factors comports with the Fourth Amendment. App., *infra*, 39a-51a. The court held that such stops will *never* support reasonable suspicion within the Central District of California, because “the four enumerated factors at issue * * * describe only a broad profile and ‘do not demonstrate reasonable suspicion for any particular stop.’” *Id.* at 45a; see *id.* at 45a-51a. The court added that, “[i]f future stops are based on additional, relevant facts” on top of the four prohibited factors, “those scenarios will be unaffected by the TRO.” *Id.* at 41a. Yet the court then ruled out one particularly relevant factor, stating that additional knowledge obtained through an agent’s experience is categorically insufficient to clear the reasonable-suspicion bar when paired with any or all of the prohibited factors. See *id.* at 44a (“‘[E]xperience’ does not in itself serve as an independent factor in the reasonable suspicion analysis.”) (citation omitted); *id.* at 47a (disallowing location-targeting based on agents’ “past experiences”).

The court of appeals also held that a district-wide injunction was appropriate. App., *infra*, 51a-57a. The court described the scope-of-relief inquiry as “not whether there is some conceivable injunction that is *more* tailored while providing equal relief,” but rather whether “no reasonable person could take the view adopted by the trial court.” *Id.* at 52a (citation omitted). The court concluded that although the order provides relief to millions of nonparties, it is not an impermissible “universal” injunction because it applies only in the Central District of California and because “enjoining Defendants from stopping *only the Plaintiffs* would not afford the Plaintiffs meaningful relief.” *Id.* at 53a-54a. Finally, the court found that the injunction did not irreparably harm applicants, whereas a stay would substantially injure respondents. See *id.* at 57a-59a.

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, this Court may stay a preliminary injunction entered by a federal district court. See, e.g., *Brewer v. Landrigan*, 562 U.S. 996 (2010); *Brunner v. Ohio Republican Party*, 555 U.S. 5 (2008) (per curiam). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors strongly support a stay here.

A. The Government Is Likely To Succeed On The Merits

The district court upended immigration-enforcement efforts throughout the entire Central District of California—a vast area encompassing some 20 million people and an estimated 2 million illegal aliens—by categorically enjoining immigration officers from conducting investigative stops that rest solely on any combination of four factors (*i.e.*, a suspect’s apparent race or ethnicity; whether he speaks Spanish or accented English; whether he is at a location where illegal aliens are known to gather; and whether his job is prevalent among illegal aliens because of the lack of documentation required). That legally flawed injunction warrants this Court’s review on several grounds. First, respondents—five individuals and four organizations—lack Article III standing to obtain an injunction barring investigative stops based on the prohibited factors, because no respondent faces any immediate risk of being subjected to such a stop. Second, the district court’s order contravenes bedrock Fourth Amendment principles by imposing categorical rules that artificially limit inferences of reasonable suspicion, and by wrongly holding that the four factors—even in combination—can never amount to reasonable suspicion. Finally, the scope of this

injunction is plainly unlawful. By issuing an injunction encompassing anyone within the Central District of California—an injunction encompassing potentially millions of nonparties—the court defied *Trump v. CASA, Inc.*, 145 S. Ct. 2540 (2025).³

1. Respondents lack standing to seek injunctive relief restricting investigative stops for immigration enforcement

First, respondents lack Article III standing to seek prospective injunctive relief. See *Clapper v. Amnesty Int’l USA*, 568 U.S. 398, 412 (2013). To establish standing, “a plaintiff must demonstrate (i) that she has suffered or likely will suffer an injury in fact, (ii) that the injury likely was caused or will be caused by the defendant, and (iii) that the injury likely would be redressed by the requested judicial relief.” *FDA v. Alliance for Hippocratic Med.*, 602 U.S. 367, 380 (2024). Only “actual or imminent” injuries count, *id.* at 381—not allegations that are “too speculative” or merely assert “‘possible future injury,’” *Clapper*, 568 U.S. at 409 (citations omitted).

Here, respondents’ allegations are entirely speculative. They claim that ICE has an unstated practice of relying on just four factors to supply reasonable suspicion for immigration stops, and that those factors could describe broad swaths of the population. But respondents offer nothing to substantiate their premise that they—out of the 20 million or so inhabitants of the Central District of California—would be stopped again. Respondents and the courts below also acknowledge that ICE at least sometimes relies on additional factors, and do not challenge stops that rely on the four factors plus even one additional factor as lacking reasonable suspicion. See Resp.

³ The court of appeals correctly concluded that the district court’s order is likely appealable despite its styling as a TRO. App., *infra*, 34a-35a. The order lasts indefinitely; it was issued after briefing and an adversary hearing; the court’s “basis for issuing the order is strongly challenged”; and the order imposes irreparable consequences in the meantime. *Department of Educ. v. California*, 145 S. Ct. 966, 968 (2025) (per curiam) (brackets and citation omitted).

C.A. Stay Opp. 17; App., *infra*, 40a-41a. That just aggravates the standing problem: even if respondents were stopped in the future, they have no basis for alleging that they would be stopped *solely* based on the four prohibited factors, not for some additional reasons.

a. This Court’s decision in *City of Los Angeles v. Lyons*, 461 U.S. 95 (1983), forecloses respondents’ past-is-prologue theory of standing. There, police officers stopped the plaintiff for a traffic violation, seized him, and placed him in a chokehold. *Id.* at 97. The Court held that, while the plaintiff could pursue a damages claim for that past injury, he lacked standing for prospective relief because he had not shown that “he was likely to suffer future injury from the use of the chokeholds by police officers.” *Id.* at 105. There was no “immediate threat” that he would again be “choke[d] * * * without any provocation or resistance on his part.” *Ibid.* That was so even though the Court accepted that the police department had a policy of “routinely apply[ing] chokeholds in situations where they are not threatened by the use of deadly force.” *Ibid.*

Respondents’ standing theory—particularly as embodied in the allegations by respondent Gavidia, the sole plaintiff for whom the district court found standing, see pp. 11-12, *supra*—is a redux of *Lyons*. As in *Lyons*, Gavidia alleges a past Fourth Amendment injury from law enforcement. Compare D. Ct. Doc. 45-9, at 2-3 (July 3, 2025) (Gavidia allegedly stopped based on his “skin color”), with *Lyons*, 461 U.S. at 97-98. As in *Lyons*, Gavidia seeks prospective relief to enjoin the challenged practice (here, reliance solely on the four factors in detentive stops). Compare App., *infra*, 111a, with *Lyons*, 461 U.S. at 99-100. And, as in *Lyons*, Gavidia cannot show standing because he has no basis beyond speculation to believe that he will be stopped again without reasonable suspicion based solely on the four factors. “Absent a suffi-

cient likelihood that he will again be wronged in a similar way,” he is “no more entitled to an injunction than any other citizen of Los Angeles; and a federal court may not entertain a claim by any or all citizens who no more than assert that certain practices of law enforcement officers are unconstitutional.” *Lyons*, 461 U.S. at 111.

The remaining individual respondents even more clearly lack standing. Respondent Viramontes, for example, alleged that agents visited the carwash where he works twice *without* stopping him, then detained him for about 20 minutes on their third visit until they could verify his citizenship status. D. Ct. Doc. 45-4, at 1-2. That single interaction provides no basis to believe Viramontes will be subject to any future stops, let alone wrongful ones. For two other respondents, Perdomo and Molina, the only specific “evidence” of their standing is respondent Perdomo’s “belie[f]” that he will be stopped again (D. Ct. Doc. 45-1, at 3) and respondent Molina’s “worr[y]” that he will be arrested again for “look[ing] like an immigrant” (D. Ct. Doc. 45-3, at 3). Subjective fear of a future allegedly illegal stop, however, “is not certainly impending” and “cannot manufacture standing.” *Clapper*, 568 U.S. at 416.

The organizational respondents likewise lack standing to pursue prospective injunctive relief. Associational standing requires proof (*inter alia*) that an organization’s “members would otherwise have standing to sue in their own right” and “neither the claim asserted nor the relief requested requires the participation of individual members in the lawsuit.” *Alliance for Hippocratic Med.*, 602 U.S. at 398 (Thomas, J., concurring) (quoting *Hunt v. Washington State Apple Adver. Comm’n*, 432 U.S. 333, 343 (1977)). But, just like the individual respondents, any risk of future harm for the organizations’ members is speculative. See *id.* at 381 (citing *Clapper*, 568 U.S. at 409). Absent any nonspeculative probability of injury to their members, the organizations lack standing. “Fourth Amendment rights are personal rights which * * *

may not be vicariously asserted.” *Alderman v. United States*, 394 U.S. 165, 174 (1969); see *Rakas v. Illinois*, 439 U.S. 128, 133-134 (1978).

b. The lower courts attempted to brush *Lyons* away by emphasizing “a real and immediate threat that the conduct complained of will continue.” App., *infra*, 96a; see *id.* at 28a. But the courts failed to identify any realistic immediate threat to *respondents*—the essence of the standing inquiry. See *TransUnion LLC v. Ramirez*, 594 U.S. 413, 423 (2021). It was insufficient in *Lyons* that the police department was generally likely to continue to employ chokeholds; what mattered was whether the *plaintiff* there would likely be subject to a chokehold again. So too here, it is insufficient that the lower courts deemed federal agents likely to continue a general, unstated policy of relying solely on the four factors. What matters is that *respondents* cannot show they will likely be stopped and detained solely based on those factors again. Indeed, respondents and the lower courts elsewhere all but admit as much by alluding to other factors that federal officers sometimes rely on and acknowledging that adding those factors to the mix would not present the same Fourth Amendment problems. See, e.g., App., *infra*, 102a n.29 (acknowledging that “the surveillance and intelligence data * * * share[d] with the agents” could give rise to reasonable suspicion but faulting the government for “fail[ing] to provide any concrete details” about that sensitive law-enforcement data).

The lower courts attempted to paper over this gap by invoking circuit precedent holding that harm inflicted by “a pattern of officially sanctioned behavior” is automatically likely to recur. App., *infra*, 25a (quoting *Melendres v. Arpaio*, 695 F.3d 990, 998 (9th Cir. 2012)). Never mind that, as the lower courts recognized, there is no evidence of such an official policy. See *id.* at 20a (acknowledging “there being no evidence of an ‘official policy’ of making stops based only on the four factors and with-

out reasonable suspicion”); *id.* at 106a n.33 (“Plaintiffs have not pointed to any ‘official’ policy that authorizes or ratifies the alleged ‘roving patrols’ for purposes of this TRO.”). Even if the record were otherwise, *Lyons* rejected the court of appeals’ reasoning. *Lyons* accepted *arguendo* allegations that “police officers, ‘pursuant to the authorization, instruction and encouragement of [d]efendant City of Los Angeles, regularly and routinely appl[ied]’” the chokeholds that the plaintiff sued to enjoin. 461 U.S. at 98; see *id.* at 113-114 (Marshall, J., dissenting) (observing that “[t]he complaint clearly alleges that the officer who choked Lyons was carrying out an official policy”). Nonetheless, *Lyons* dismissed as irrelevant to standing whether the plaintiff “seeks to enjoin only an ‘established,’ ‘sanctioned’ police practice assertedly violative of constitutional rights.” 461 U.S. at 108. The Court explained that, “to have a case or controversy with the City that could sustain [his claim for injunctive relief], Lyons would have to credibly allege that he faced a realistic threat from the *future application* of the City’s policy.” *Id.* at 107 n.7 (emphasis added).

This Court reinforced the point in *Clapper*. The plaintiffs there challenged a statutorily authorized surveillance program—a quintessential type of established, sanctioned program—but their assertion of “an objectively reasonable likelihood that their communications will be acquired under [that program] at some point in the future * * * [wa]s too speculative to satisfy the well-established requirement that threatened injury must be ‘certainly impending.’” *Clapper*, 568 U.S. at 401 (citation omitted). Otherwise, under the lower courts’ meritless approach, whenever a plaintiff alleges an “officially sanctioned” pattern or policy, he would have standing to seek to enjoin, say, a small-scale ICE program that would result in detentive questioning of a mere 100 Los Angeles residents per year, even though that plaintiff faced a vanishingly small chance of ever being affected by that program. Plaintiffs cannot circum-

vent the imminent-injury requirement just by alleging a pattern or policy.

The court of appeals also suggested that the individual respondents themselves, and at least some members of the organizational respondents, face an imminent threat of injury based on pure statistical inference. Because respondents are sufficiently numerous, and the enforcement action is sufficiently “high-volume,” the court projected some overlap between the former and the latter. See App., *infra*, 28a, 30a-31a (comparing immigration agents’ “high-volume, District-wide practice” with the organizational plaintiffs’ “large scale of * * * Los Angeles-area memberships”). But this Court has never accepted such a statistical-probability theory of standing, particularly when the numbers involve thousands of unidentified organizational members across the entirety of California who assert some risk of being detained by immigration officers in a district populated by 20 million people. *Id.* at 14a, 16a, 18a. On the contrary, this Court has held that organizational standing based on the mere “statistical probability that some of [the organization’s thousands of] members are threatened with concrete injury” would “make a mockery of [the Court’s] prior cases,” and it has instead required specific, concrete allegations of harm to one or more “*identified* member[s]” of an organizational plaintiff. *Summers v. Earth Island Inst.*, 555 U.S. 488, 498 (2009) (emphasis added).

Further, this “statistical probability” approach to standing contradicts respondents’ theory of the merits. Respondents—and the lower courts—cannot have it both ways: to the extent “the four factors establish only a ‘broad profile’” that encompasses too many people to justify individualized reasonable suspicion for Fourth Amendment purposes, App., *infra*, 41a; but see pp. 30-31, *infra*, it is unclear why any particular member of the large relevant population would have a nonspeculative likelihood of being encountered and detained again. Cf. Quinones Decl. 4 (noting ICE

ERO’s processing of about “2,805 immigration arrests” from June to mid-July).

Even if respondents had a nonspeculative prospect of being stopped again in the future, they have made no showing whatsoever that they would likely be stopped *on the basis prohibited by the injunction*—*i.e.*, based solely on the four enumerated reasonable-suspicion factors, to the exclusion of any of the myriad other factors on which an agent might rely. The court of appeals thus wrongly found it “significant” that a single anonymous individual has allegedly been stopped “twice.” App., *infra*, 26a. That only one anonymous person was stopped twice undercuts respondents’ theory of recurrent stops. Moreover, the court of appeals failed to analyze whether either stop (much less both) lacked reasonable suspicion (much less was predicated on the prohibited factors). All agree that any future stops that included even one additional factor would not fall within the injunction—yet no one has offered any basis to think that the same individual will be stopped for the same purportedly impermissible reasons, and *only* those reasons, in any future stop. “Absent a sufficient likelihood that [they] will again be wronged *in a similar way*,” *Lyons*, 461 U.S. at 111 (emphasis added), respondents cannot establish standing to seek an injunction.

2. The district court grossly misapplied the Fourth Amendment

Jurisdiction aside, the district court’s injunction also misapprehends the Fourth Amendment by placing under judicial supervision all immigration-enforcement stops within the Central District and subjecting every such encounter between agents and potential illegal aliens to the threat of contempt.

Under the injunction, federal immigration officials “may not rely solely on” four factors, “alone or in combination, to form reasonable suspicion for a detentive stop” of any of the nearly 20 million people in the Central District of California. App., *infra*, 111a. Those factors are: “[a]pparent race or ethnicity”; “[s]peaking Spanish or speak-

ing English with an accent”; “[p]resence at a particular location (e.g. bus stop, car wash, tow yard, day laborer pick up site, agricultural site, etc.)”; or “[t]he type of work one does.” *Ibid.* As the court of appeals confirmed, that injunction further bars consideration of officers’ experience in connection with the enumerated factors—for example, experience “‘demonstrat[ing] that illegal aliens utilize or seek work at the[] locations”” or that certain jobs are “more often performed by illegal immigrants than are other jobs”—because in the lower courts’ view, past experience never adds anything to the calculus. *Id.* at 43a; see *id.* at 50a n.13, 105a. The injunction contravenes blackletter Fourth Amendment doctrine, which embraces a totality-of-the-circumstances, noncategorical approach that recognizes that the strength of particular factors may vary in context and that factors in combination can supply reasonable suspicion even if they do not individually.

a. The Fourth Amendment guarantee against unreasonable searches and seizures “extend[s] to brief investigatory stops of persons or vehicles that fall short of traditional arrest,” including stops of individuals suspected of being in the United States illegally. *United States v. Arvizu*, 534 U.S. 266, 273 (2002). By virtue of “the limited nature of the intrusion,” however, “stops of this sort may be justified on facts that do not amount to the probable cause required for an arrest.” *United States v. Brignoni-Ponce*, 422 U.S. 873, 880 (1975). Instead, an officer may conduct such a stop based on reasonable suspicion—supported by “specific articulable facts, together with rational inferences from those facts”—that a person is an illegal alien. *Id.* at 884; see 8 C.F.R. 287.8(b)(2). Reasonable suspicion requires only “‘some minimal level of objective justification’ for making the stop,” a standard that is “obviously less demanding than that for probable cause,” *United States v. Sokolow*, 490 U.S. 1, 7 (1989) (citation omitted)—which is itself “not a high bar,” *Kaley v. United States*, 571 U.S. 320,

338 (2014). Given that probable cause “is something more than a bare suspicion, but need not reach the fifty percent mark,” reasonable suspicion requires even less certainty. See *United States v. Garcia*, 179 F.3d 265, 269 (5th Cir. 1999), cert. denied, 530 U.S. 1222 (2000).

The reasonable-suspicion inquiry “turn[s] on the totality of the particular circumstances.” *Brignoni-Ponce*, 422 U.S. at 885 n.10; see *Arvizu*, 534 U.S. at 273. By definition, no particular circumstantial factor is categorically off-limits—whether that factor is a person’s appearance, behavior, or the officer’s past experience with the particular offense, location, or suspect. See, e.g., Quinones Decl. 3 (collecting examples of reasonable-suspicion factors in the immigration-enforcement context). Reasonable suspicion is accordingly context-dependent and cannot be reduced to per se rules that treat certain factors as categorically insufficient. Indeed, this Court has repeatedly reversed decisions imposing such rules. In *Arvizu*, this Court rejected as too rigid the court of appeals’ framework deeming seven particular factors as “carr[ying] little or no weight in the reasonable-suspicion calculus.” 534 U.S. at 272; see *id.* at 274. In *Sokolow*, the Court rejected a rule allowing officers to rely on certain evidence of “ongoing criminal behavior” but not “probabilistic” evidence. 490 U.S. at 8. And in *United States v. Banks*, 540 U.S. 31 (2003), this Court similarly rejected a reticulated judicial framework governing the police’s entry into a residence after knocking and announcing their presence. *Id.* at 34, 41-42.

b. The district court’s injunction contravenes those basic principles.

i. To begin, the injunction ignores this Court’s repeated instructions by categorically barring immigration officers in the Central District of California from forming reasonable suspicion for an investigative stop based on the four enumerated factors. App., *infra*, 111a. The court of appeals denied that the district court’s in-

junction “create[s] a categorical rule,” noting that it applies only in the Central District of California and does not prohibit stops based on the four enumerated factors in conjunction with others. *Id.* at 41a. Those responses are non sequiturs. A categorical rule for a district the size of a small country is still categorical. So is a rule providing that stops based solely on four identified factors are never permissible. This Court considered the rule in *Arvizu* categorical because the Ninth Circuit refused to consider seven factors as relevant to reasonable suspicion; it was irrelevant there that other factors might support a stop. 534 U.S. at 272-273.

The court of appeals defended the injunction’s categorical approach by contending that “[c]ourts routinely assess specific groupings of factors to determine whether those factors together give rise to reasonable suspicion,” then apply that holding across like circumstances. App., *infra*, 42a. But courts cannot convert those like circumstances into a per se rule prohibiting particular factors from supporting reasonable suspicion as to any one of millions of people just based on ipse dixit, least of all when the relevant circumstances themselves can vary (*e.g.*, one suspect may not speak English at all and be at a workplace known to have hired 100 illegal aliens the prior week; another may simply be bilingual at a workplace known to have hired one illegal alien years ago). Nor does the court of appeals’ cited authority, *Ornelas v. United States*, 517 U.S. 690 (1996), hold otherwise. *Ornelas* simply observes that different cases can occasionally, despite the intensely fact-dependent nature of the reasonableness inquiry, turn on the same specific factors and require the same result. See *id.* at 698; see *ibid.* (comparing two cases in both of which “the defendant traveled under an assumed name; paid for an airline ticket in cash with a number of small bills; traveled from Miami, a source city for illicit drugs; and appeared nervous in the airport”). *Ornelas* was not referring to broadly framed factors like “location” and

“type of work,” App., *infra*, 111a, and does not endorse broad categorical limitations of the kind imposed here. In *Arvizu*, this Court warned against similar overextension of “the reasoning of *Ornelas*.” 534 U.S. at 275. The injunction exemplifies the kind of categorical and discretion-limiting framework that “runs counter to [this Court’s] cases and underestimates the usefulness of the reasonable-suspicion standard in guiding officers in the field.” *Ibid*.

ii. The injunction also violates basic Fourth Amendment principles and common sense in evaluating the relevancy of the four factors here. Here, the question is what constitutes reasonable suspicion for illegal presence in the United States—a status that renders that alien subject to detention and removal under the INA, and a status shared by an estimated 10 percent of the population of the Central District of California, or about 2 million people within the district. In that context, the four factors enumerated in the district court’s injunction are plainly relevant. To take one example, if officers know based on their experience or past enforcement history that a particular business has a history of employing illegal aliens and has, for instance, been cited 20 times for failing to verify employees’ identification, officers may well have reasonable suspicion to stop people gathering to seek employment there, especially given the concentration of illegal aliens in the Central District. See, *e.g.*, *United States v. Montero-Camargo*, 208 F.3d 1122, 1138 (9th Cir.) (en banc) (describing relevance of location to reasonable suspicion), cert. denied, 531 U.S. 889 (2000).

Similarly, if agents know that particular jobs are attractive to illegal aliens because they do not require documentation or verification, that too can support reasonable suspicion. See, *e.g.*, *Maldonado v. Holder*, 763 F.3d 155, 161 (2d Cir. 2014) (noting that day labor is “an occupation that is one of the limited options for workers without documents”). The district court practically acknowledged as much by identi-

fying specific jobs and locations that are often associated with illegal aliens. *E.g.*, App., *infra*, 111a (referring to “day laborer pick up site[s]”). Thus, if officers know from past experience that illegal aliens seeking construction jobs congregate in a particular parking lot to meet prospective employers, they may well have reasonable suspicion for investigative stops of non-English-speaking persons congregated there.

Likewise, apparent ethnicity can be a factor supporting reasonable suspicion in appropriate circumstances—for instance, if agents know that the members of a criminal organization under investigation are disproportionately members of one ethnic group—even if it would not be relevant in other circumstances. See *Brignoni-Ponce*, 422 U.S. at 885-886 (“apparent Mexican ancestry” did not “alone” supply reasonable suspicion). And, in context, officers might reasonably rely on the fact that someone exclusively speaks Spanish to support reasonable suspicion that the person is here illegally, not least because a disproportionate percentage of illegal aliens in the Central District speak Spanish and do not speak English fluently or at all. See, *e.g.*, *United States v. Manzo-Jurado*, 457 F.3d 928, 937 (9th Cir. 2006) (fact that group was “speaking to each other only in Spanish” was “relevant to the reasonable suspicion inquiry”). All of this reflects common sense: the reasonable-suspicion threshold is low, and the number of people who are illegally present and subject to detention and removal under the immigration laws in the Central District is extraordinarily high and starts off at a 1 in 10 probability just among the general population. In that context, the four factors at issue—especially when most illegal aliens in the Central District hail from Mexico and Central America, often speak Spanish exclusively, and seek out jobs that do not require documentation—can obviously support reasonable suspicion for a brief investigative stop in at least some circumstances.

The lower courts instead wrongly dismissed the four factors (individually or

collectively) as categorically insufficient to supply reasonable suspicion in this context. The courts ticked off the four factors listed in the injunction, deemed each one only marginally probative of reasonable suspicion, and then concluded that “[e]ven taken together, the four enumerated factors describe only a ‘broad profile’ that does not supply the reasonable suspicion required to justify a detentive stop.” App., *infra*, 48a (quoting *Manzo-Jurado*, 457 F.3d at 939); see *id.* at 103a-104a.

Just because the four factors may not supply reasonable suspicion in *some* circumstances, however, does not mean they will *never* do so. Take *Manzo-Jurado*, which the lower courts relied on heavily. App., *infra*, 45a-50a, 101a-105a. There, the Ninth Circuit gave little weight to the suspects’ location (a football stadium in Montana) and work-crew status because their particular location and employer were not associated with illegal aliens—not because those factors can never combine to establish reasonable suspicion. 457 F.3d at 936, 938. By contrast, in *Maldonado*, the Second Circuit declined to suppress evidence from a stop in a park where groups of Latinos were known to gather to “to offer themselves for day labor, an occupation that is one of the limited options for workers without documents.” 763 F.3d at 161; see *id.* at 160.

Here, that the four factors—even in combination—might describe a “broad profile” is inevitable and unremarkable, given that 10 percent of the population in the Central District, some 2 million people, are illegally present in the United States. See pp. 8-9, *supra*. Again, reasonable suspicion is a low bar—lower than probable cause—and the high prevalence of illegal aliens *should* enable agents to stop a relatively broad range of individuals (even if the probability of any particular person actually being stopped remains low, as discussed above). “[A] large segment” of the relevant population is engaged in violating the law, and an even larger portion may validly

trigger reasonable suspicion—a standard that requires far less than 50-percent certainty. App., *infra*, 50a; see *Sokolow*, 490 U.S. at 7. By ignoring the context-dependent nature of the Fourth Amendment standard, the lower courts categorically dismissed factors that are relevant to this basis for detentive stops in this jurisdiction. See *Ornelas*, 517 U.S. at 696.

Further, the lower courts wrongly dismissed the four factors in combination. Reasonable suspicion, like probable cause, requires consideration of “the sum total of layers of information and the synthesis of what the police have heard, what they know, and what they observe as trained officers,” not particular factors in isolation. *Smith v. United States*, 358 F.2d 833, 837 (D.C. Cir. 1966) (Burger, J.), cert. denied, 368 U.S. 1008 (1967). Yet, here, the district court’s injunction forecloses officers from conducting even highly targeted stops based on factors that would not apply to most of the population: for instance, the injunction forecloses reasonable suspicion to stop an individual observed at length speaking exclusively Spanish, wearing the uniform of an employer known to employ illegal aliens, and shopping at a business known to be frequented by illegal aliens—simply because suspicion in such a case would be furnished by the suspect’s language, job type, and location. On top of that, the injunction bars consideration of officers’ experience in connection with the enumerated factors. App., *infra*, 43a, 50a n.13; see *id.* at 105a; cf. Quinones Decl. 3 (three original respondents apprehended in connection with “a targeted enforcement action at a particular location where past surveillance and intelligence had confirmed that the target or individuals associated with him were observed to have recruited illegal aliens to work on landscaping jobs”). That drastically raises the reasonable-suspicion bar and defies the commonsense, totality-of-the-circumstances approach that governs investigative stops. That certain factors “alone” may be too generalized—*e.g.*, Hispanic

ethnicity, the factor solely relied upon in *Brignoni-Ponce*, 422 U.S. at 885-886—does not mean that the factors are always so “in combination.” App., *infra*, 5a, 111a. The lower courts thus grievously misinterpreted the Fourth Amendment to invent improper limitations on reasonable suspicion.

3. The Central District-wide injunction vastly exceeds the district court’s equitable powers

If nothing else, the district court’s grant of district-wide relief flagrantly violates this Court’s recent holding in *CASA*, forbidding the issuance of universal (*i.e.*, non-party-specific) injunctions. The district court did not merely enjoin the government from detaining *respondents* without reasonable suspicion; it enjoined the government from conducting such stops of any of the 20 million people within the Nation’s most populous federal judicial district. That extreme mismatch between respondents’ asserted injuries and the district court’s universal relief flouts *CASA*, which the lower courts barely addressed. See, *e.g.*, App., *infra*, 91a n.21 (obliquely acknowledging “the Supreme Court’s recent holding that district courts do not have equitable power to issue a ‘universal injunction’”).

a. In *CASA*, this Court held that the statutory grant of jurisdiction over suits “‘in equity’” “encompasses only those sorts of equitable remedies ‘traditionally accorded by courts of equity’ at our country’s inception.” 145 S. Ct. at 2551 (citations omitted); see *Grupo Mexicano de Desarrollo, S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 319 (1999). “Neither the universal injunction nor any analogous form of relief was available * * * at the time of the founding.” *CASA*, 145 S. Ct. at 2551. Rather, “suits in equity were brought by and against individual parties.” *Ibid.* At most, a court granting equitable relief “may administer complete relief *between the parties*.” *Id.* at 2557 (citation omitted). Thus, “the question is not whether an injunc-

tion offers complete relief to *everyone* potentially affected by an allegedly unlawful act; it is whether an injunction will offer complete relief *to the plaintiffs before the court.*” *Ibid.* Even then, “[c]omplete relief is not a guarantee—it is the maximum a court can provide.” *Id.* at 2558.

The district court’s injunction violates those limits on federal courts’ equitable powers. Under *CASA*, any injunctive relief should have applied *only* to named respondents. Instead, the district court broadly enjoined applicants “from conducting detentive stops in this District unless the agent or officer has reasonable suspicion that the person to be stopped is within the United States in violation of U.S. immigration law,” defining reasonable suspicion to preclude sole reliance on the four factors. App., *infra*, 111a. The district court was not shy about the ultimate scope of its order: its intent was avowedly to “enjoin the conduct of all law enforcement engaged in immigration enforcement throughout the District.” *Id.* at 97a. That injunction triggers all the classic problems with universal injunctions that *CASA* warned against. By covering millions of nonparties, this injunction broadly “halt[s] the enforcement of federal policy” across the Nation’s most populous District. *CASA*, 145 S. Ct. at 2559. The inevitable disruptions necessitate emergency appellate relief. And the district court’s micromanagement of Executive Branch policy and enforcement decisions effects an intolerable transfer of core executive functions to the Judiciary, generating needless and avoidable interbranch friction. See *id.* at 2561.

b. The lower courts defended the scope of this injunction as “only District-wide and not nationwide,” App., *infra*, 91a n.21; see *id.* at 53a-54a, but that misses the point. Whether the injunction extends to the entire population of the United States or merely the 20 million residents of the Central District of California, the injunction goes well beyond providing complete relief *to respondents*.

The court of appeals went far astray starting with the basic legal standards. The court conditioned the government’s ability to obtain relief on “establish[ing] that ‘no reasonable person could take the view adopted by the trial court’” as to the scope of the injunction. App, *infra*, at 52a. But “[a] district court by definition abuses its discretion when it makes an error of law,” such as ignoring an authoritative holding of this Court. *Koon v. United States*, 518 U.S. 81, 100 (1996). The court then went so far as to say that the inquiry cannot even consider whether there is an “injunction that is *more* tailored while providing equal relief.” App., *infra*, 52a. That too is wrong. “A plaintiff’s remedy must be tailored to redress the plaintiff’s particular injury,” *Gill v. Whitford*, 585 U.S. 48, 73 (2018), and “no more burdensome to the defendant than necessary” to provide such redress, *Califano v. Yamasaki*, 442 U.S. 682, 702 (1979). Hence, this Court in *CASA* directed the lower courts on remand to consider “whether a narrower injunction is appropriate.” 145 S. Ct. at 2558. Fashioning injunctive relief of appropriate scope is the first duty of courts sitting in equity, not an irrelevant sideshow.

The lower courts also justified the injunction’s breadth on the ground that “it would be a fantasy to expect that law enforcement could and would inquire whether a given individual was” a plaintiff in this case “before proceeding with a seizure,” citing only a pre-*CASA* circuit case arising in a completely different factual context. App., *infra*, 97a; see *id.* at 54a (similar). But other courts have granted party-limited injunctions in similar contexts. See, e.g., *Kentucky v. Biden*, 57 F.4th 545, 557 (6th Cir. 2023) (“Because an injunction limited to the parties can adequately protect the plaintiffs’ interests while the case is pending disposition on the merits, the district court abused its discretion in extending the preliminary injunction’s protection to non-party contractors in the plaintiff States.”); *Philadelphia Yearly Meeting of Reli-*

gious Soc’y of Friends v. United States Dep’t of Homeland Sec., 767 F. Supp. 3d 293, 336 (D. Md. 2025) (“Plaintiffs have provided no basis to conclude that they could not provide to DHS, for purposes of enforcement of the injunction, a list of the locations of their places of worship and of other sites at which they may hold their worship services.”). Otherwise, a single plaintiff challenging similar law-enforcement practices could invariably get district-wide (or presumably even broader) relief. Under that rule, federal courts would once again “exercise general oversight of the Executive Branch” in a manner this Court deemed—just weeks ago—to “exceed [their] power.” *CASA*, 145 S. Ct. at 2562.

The court of appeals was particularly concerned that “a list-of-protected-people injunction” could not realistically or appropriately “include all of the members of the plaintiff associations.” App., *infra*, 55a. If accurate, that is a feature, not a bug: courts may not grant relief to members who were not identified in the complaint and who did not agree to be bound by an adverse judgment. See *FDA v. Alliance for Hippocratic Med.*, 602 U.S. 367, 399, 403 (2024) (Thomas, J., concurring). On the contrary, to establish standing in the first place, organizational plaintiffs must “make specific allegations establishing that at least one *identified* member has suffered harm,” and “[t]his requirement of *naming the affected members* has never been dispensed with in light of statistical probabilities.” *Summers*, 555 U.S. at 498-99 (emphasis added). In any event, the court of appeals failed to grapple with the experience of courts that *have* effectively tailored injunctive relief to only the organizational parties actually before them. See p. 32, *supra*. And any inconvenience of applying the injunction on an associational basis follows directly from the fundamental unlawfulness of granting relief to a vast number of unidentified members, contrary to this Court’s instructions in *Summers*, 555 U.S. at 498-499. Nothing in the record suggests

that it would be impracticable or unworkable to limit injunctive relief to the parties. Cf., e.g., *Gomez v. Vernon*, 255 F.3d 1118, 1130 (9th Cir.) (holding that a district court “appropriately tailored” and “properly limited” injunctive relief against retaliatory prison practices “to just six inmates”), cert. denied, 534 U.S. 1066 (2001).

B. The Remaining Stay Factors Support Relief

In deciding whether to grant emergency relief, this Court also considers whether the underlying issues warrant its review; whether the applicant likely faces irreparable harm; and, in close cases, the balance of the equities. See *Hollingsworth*, 558 U.S. at 190. Those factors tilt decisively in favor of a stay here.

1. This Court would likely grant certiorari

The issues presented in this application manifestly warrant this Court’s review under its traditional certiorari criteria. See *John Does 1-3 v. Mills*, 142 S. Ct. 17, 18 (2021) (Barrett, J., concurring in the denial of application for injunctive relief). To start, this Court often grants review when lower courts contravene this Court’s precedent, and the decisions below do so in spades, violating this Court’s foundational precedents on individual standing, organizational standing, Fourth Amendment principles, and the scope of injunctive relief. See Sup. Ct. R. 10(c). Indeed, the Court has repeatedly granted certiorari to review (and reversed) Ninth Circuit decisions that limited consideration of the totality of circumstances in Fourth Amendment analysis. See, e.g., *Banks*, 540 U.S. at 41-42; p. 24, *supra*.

This Court has also consistently granted stays when lower courts unduly interfered with enforcement of the immigration laws, which the Constitution and federal statutes commit to the Executive Branch. See, e.g., *Noem v. Doe*, 145 S. Ct. 1524 (2025) (granting stay of district-court order enjoining categorical revocation of parole for aliens); *Noem v. National TPS Alliance*, No. 24A1059, 2025 WL 1427560 (May 19,

2025) (granting stay of district-court order barring partial termination of temporary protected status for Venezuelan nationals); *Trump v. Sierra Club*, 140 S. Ct. 1 (2019) (granting stay of district-court order enjoining the Department of Defense from undertaking any border-wall construction using funding the Acting Secretary transferred pursuant to statutory authority); see also *INS v. Legalization Assistance Project*, 510 U.S. 1301, 1305-1306 (1993) (O'Connor, J., in chambers) (granting stay of district-court order requiring INS to engage in certain immigration procedures, as “an improper intrusion by a federal court into the workings of a coordinate branch of the Government”). This case fits that bill. The Los Angeles area is a crucial priority for immigration enforcement where millions of aliens have broken the law and remain illegally. Yet the injunction has thrown a central element of immigration enforcement—investigative stops—into intolerable uncertainty.

2. The district court’s order inflicts irreparable harm on the government

The injunction inflicts irreparable harm on the government and public, whose interests “merge” here, *Nken v. Holder*, 556 U.S. 418, 435 (2009). Most immediately, the district court’s order irreparably harms the government by thwarting enforcement of the immigration laws in a critically important region containing about 2 million illegal aliens. “The problems posed * * * by illegal immigration,” from “crime” and “safety risks” to the consumption of limited public resources, “must not be underestimated.” *Arizona v. United States*, 567 U.S. 387, 398 (2012) (citation omitted). Because illegal aliens “create significant economic and social problems” and are “themselves * * * vulnerable to exploitation because they cannot complain of substandard working conditions without risking deportation,” “the public interest demands effective measures to prevent the illegal entry of aliens.” *Brignoni-Ponce*, 422

U.S. at 878-879. “To implement its immigration policy, the Government must be able to decide (1) who may enter the country and (2) who may stay here after entering.” *Jennings v. Rodriguez*, 583 U.S. 281, 286 (2018). Preventing the Executive Branch from implementing a major enforcement priority and effectuating the immigration laws Congress enacted constitutes irreparable harm. The universal injunction here also inflicts irreparable harm by supplanting the political Branches’ judgments and intruding on the separation of powers. See *CASA*, 145 S. Ct. at 2561.

Further, the injunction gravely chills enforcement efforts by improperly threatening federal officers with contempt and extensive judicial second-guessing even if they comply with its terms. Cf. *Harlow v. Fitzgerald*, 457 U.S. 800, 807 (1982) (noting the “public interest in encouraging the vigorous exercise of official authority”) (citation omitted). Under federal law, the government conducts investigative stops of suspected illegal aliens only where officers have reasonable suspicion based on specific articulable facts. See 8 C.F.R. 287.8(b)(2); Quinones Decl. 2-3; Parra Decl. 5-6. But the injunction deters officers from stopping suspects even when they have reasonable suspicion on other grounds to believe the individual is here illegally. As ICE and CBP officials explained below, the injunction “fails to provide clear instructions to the Defendant law enforcement agencies as to how reasonable suspicion must be developed going forward, how the enumerated factors such as location or employment can be used under the [injunction] and what additional information, if any, would be needed if those factors are used.” Quinones Decl. 4. Uncertainty over how the court might later view an agent’s reliance on a mix of factors will “likely cause hesitation and delay in the field, which in turn increases the risk of assaults on officers, escalations during volatile encounters, and injuries to both officers and the public, particularly in the already high-risk and unpredictable environment of Los Angeles.” Parra Decl.

4; cf. *International Longshoremen’s Ass’n v. Philadelphia Marine Trade Ass’n*, 389 U.S. 64, 76 (1967) (“The judicial contempt power is a potent weapon. When it is founded upon a decree too vague to be understood, it can be a deadly one.”).

The court of appeals dismissed these concerns by stating that “[t]he TRO does not expose Defendants to the threat of contempt when they make a stop based on other factors—even if a court later concludes that Defendants lacked reasonable suspicion for the stop.” App., *infra*, 39a. And the courts below contended that the injunction does not harm the government because it merely bars agents from violating the Fourth Amendment. *Id.* at 57a-58a, 108a-109a. But those rejoinders are empty assurances. They rest on a misapprehension of the Fourth Amendment, and they overlook that agents will obviously be deterred from conducting stops when they may have to show after the fact that they relied on other factors, above and beyond the four factors the lower courts deemed insufficient. Exposing agents to such judicial micromanagement places extraordinary burdens on agents and will inevitably deter *valid* investigative stops.

Illustrating—and vastly compounding—the problem, the court of appeals preemptively concluded that a detentive stop relying on (any or all of) the four prohibited factors *plus additional knowledge obtained through the agent’s experience* remains prohibited by the injunction—and thus subject to the threat of contempt. See App., *infra*, 44a (“‘[E]xperience’ does not in itself serve as an independent factor in the reasonable suspicion analysis.” (citation omitted)); *id.* at 47a (disallowing location-targeting based on agents’ “‘past experiences’” due to a purported lack of “evidence * * * that any of the public places or types of businesses they are targeting are used exclusively, or even predominantly, by individuals illegally in the country”). And it is anyone’s guess, based on that reasoning, what other factors might get rolled

into the four prohibited factors. The only safe harbor for an immigration agent in the Central District of California would be to ignore the apparent race or ethnicity, language, location, and occupation of a suspected illegal alien—and thus to ignore factors that may often support reasonable suspicion in context.

The contempt-trap risk is no mere hypothetical, and the prospect of inter-branch friction is extraordinary. The district court has already directed the government to show cause why the government should not be further enjoined—by, for instance, being compelled to engage in court-supervised training of ICE officers; to develop “guidance” on reasonable suspicion; and (remarkably) to maintain and share with respondents’ counsel, on a “regular schedule,” “documentation of detentive stops” showing “factors supporting reasonable suspicion.” App., *infra*, 112a. The upshot of such flyspecking will be to overwhelm agents with onerous oversight and increase the risk of judicial second-guessing on pain of contempt until enforcement efforts are greatly curtailed. The court of appeals’ assurance that the district court’s injunctive oversight “does not expose Defendants to the threat of contempt,” *id.* at 39a, rings hollow in light of this preview of coming injunctive actions.

3. The balance of the equities weighs in the government’s favor

On the other side of the ledger, respondents’ asserted harms rehash their flawed theories of standing and the merits and rest on conjecture that they will again be stopped in alleged violation of their Fourth Amendment rights. App., *infra*, 36a; see *id.* at 107a. But irreparable harm requires a showing that immediate, concrete injury is “*likely* in the absence of an injunction.” *Winter v. Natural Res. Def. Council, Inc.*, 555 U.S. 7, 22 (2008). Respondents’ allegations of past injury cannot show irreparable harm or provide an adequate basis for the “imposition of systemwide relief.” *Lewis v. Casey*, 518 U.S. 343, 359 (1996). Even if another future stop were reasonably

likely, moreover, the district court's injunction is not designed to prevent such a stop because it *permits* investigative stops that are based on more than the enumerated four factors. The probability of any respondent being subjected to a future stop based solely on those four factors is even lower. Because respondents cannot even show Article III standing to seek an injunction, they necessarily cannot show irreparable harm sufficient to warrant injunctive relief. See *Monsanto Co. v. Geertson Seed Farms*, 561 U.S. 139, 162 (2010).

Nor do respondents need a sweeping injunction to protect them from speculative future stops. The Fourth Amendment already applies by its own terms to all law-enforcement actions, and existing law already provides remedies for violations, including monetary damages for wrongful detentions where appropriate. See generally *Muehler v. Mena*, 544 U.S. 93 (2005). Those existing remedies suffice to protect both respondents' interests and the public interest. Isolated past interactions are no basis for a universal, forward-looking injunction. The district court egregiously erred—and needlessly upended immigration enforcement in the most populous district in the country—by concluding otherwise.

C. An Administrative Stay Is Warranted

The Solicitor General also respectfully requests that this Court grant an administrative stay of the district court's July 11 order while the Court considers this application. Every day that the district court's order remains in effect, law-enforcement officers throughout the most populous district in the country are laboring under the threat of judicial contempt, daunted by the prospect that their good-faith efforts to enforce federal law will be retrospectively deemed to violate a far-reaching, unlawful, and ill-defined injunction. In these circumstances, an administrative stay is warranted while this Court assesses the government's entitlement to a stay.

CONCLUSION

This Court should stay the district court's July 11 order enjoining applicants from conducting detentive investigative stops in the Central District of California based on the four enumerated reasonable-suspicion factors. In addition, the Solicitor General respectfully requests an immediate administrative stay of the district court's order pending the Court's consideration of this application.

Respectfully submitted.

D. JOHN SAUER
Solicitor General

AUGUST 2025

APPENDIX

Court of appeals order denying stay pending appeal (9th Cir. Aug. 1, 2025)	1a
District court order granting temporary restraining order (C.D. Cal. July 11, 2025)	62a